

Andhra Pradesh Infrastructure Authority (Transaction of Business of the meetings of the Infrastructure Authority) Regulations, 2003

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Rule

ANDHRA-PRADESH-INFRASTRUCTURE-AUTHORITY-TRANSACTION-OF-BUSINESS-OF-THE-MEETINGS-OF-THE
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Andhra Pradesh Infrastructure Authority (Transaction of Business of the meetings of the Infrastructure Authority)
Regulations, 2003

Published vide Notification No. G.O. Ms. No. 126, Industries & Commerce (INF), dated 18.6.2004

Last Updated 21st August, 2019

From the Chairman, I.A., Lr.No. LA/Int/ Setup/2003/01, dated 26-07-2003.

The Chairman, Infrastructure Authority vide his letter read above has furnished the proposals in regard to Procedure for transaction of business of the meetings of the Authority under Section 7 read with Section 78 of the Andhra Pradesh Infrastructure Development Enabling Act, 2001.

2.

Government after careful examination in exercise of the powers conferred under Section 78 of the Andhra Pradesh Infrastructure Development Enabling Act, 2001 hereby accord approval for the said Regulations as detailed below:-

1.

Short title and commencement.

(1)

These Regulations may be called the Andhra Pradesh Infrastructure Authority (Transaction of Business of the meetings of the Infrastructure Authority) Regulations, 2003.

(2)

These Regulations shall come into force from the date of publication in the Andhra Pradesh Gazette.

2. Definitions.

(1)

In these Regulations, unless the context otherwise requires:-

(a)

"Act" means "the Andhra Pradesh Infrastructure Development Enabling Act, 2001 (Act No. 36 of 2001).

(b)

"Authority" means "The Infrastructure Authority constituted under sub-section (1) of Section 3 of Andhra Pradesh Infrastructure Development Enabling Act, 2001 (Act No. 36 of 2001).

(c)

"Government" means the Government of Andhra Pradesh.

(2)

the words and expressions used in these Regulations but defined there in shall have the meaning assigned to them in the Act and Rules made under the Act.

3.

Meetings of the Infrastructure Authority.

(1)

The Authority shall meet at such times and places and shall observe such procedure in regard to the transaction of business at its meetings (Including the quorum at meetings) as may be determined by it.

(2)

The Chairman or in his absence any ex-officio member of the Authority chosen by the members present from among themselves shall preside at a meeting of the Authority.

(3)

A copy of the proceedings of the meetings of the Authority shall be forwarded to the Government.

(4)

The Infrastructure Authority may meet at least once in three months and at least (6) times in a year, adjourn and otherwise regulate its meetings, as it thinks fit. Questions arising at any meeting shall be decided by a majority of votes of the members present. In case of any equality of votes, the Chairman shall have a second or casting vote.

(5)

All agenda items, proposal or other matters shall be placed before the Infrastructure Authority with prior consultation with the Chairperson. Notices for convening the meetings shall be issued with the period approval of the Chairperson giving at least (7) days notice to the members and other invitees. However meetings can be convened at a shorter notice with the prior permission of the Chairperson.

(6)

Every notice along with the agenda for the meeting shall be accompanied with all relevant papers, reports, studies, information on various aspects like financial, environmental, different options available together with course of action recommended and any other relevant data for arriving at a proper decision in the matter.

(7)

No resolution shall be deemed to have been passed by the Infrastructure Authority or a committee thereof by circulation,

unless the Resolution has been circulated in draft together with all necessary papers to all the members at their usual address in India and has been approved by a majority of such of them, as are entitled to vote on the resolutions.

(8)

The Quorum for the purposes of the meetings shall be 1/3rd of the total strength of the Authority or for members, whichever is higher out of whom at least (2) shall be ex-officio members. In the event of absence of quorum for the meeting within 30 minutes of the stipulated time, the meeting shall be adjourned for some other date.

(9)

The Minutes of the meetings duly approved by the Chairperson shall be communicated to all the members and the invitees in not later than (3) days from the date of the meeting. Minutes of the meetings shall be entered into a book under the signature of the Chairperson. The Minutes of the meetings shall be confirmed in the successive meeting with or without modifications, if any suggested by the members.

(10)

If the Chairperson is not present within 30 minutes of the time fixed for the meeting of the Authority for any reason, any one of the ex-officio members of the Authority shall act as Chairperson with the consent of the members present and conduct the meetings.

(11)

A member other than an Ex-Officio Member who has absented himself from (three) consecutive meetings shall cease to be a member. The absence of ex-officio members from (three) consecutive meetings shall be brought to the notice of the Government.

The infrastructure Authority shall publish the same in the Andhra Pradesh Extraordinary Gazette as required under the Act.

The Infrastructure Authority is directed to take necessary action accordingly.

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